

IN THE SUPREME COURT OF BANGLADESH  
HIGH COURT DIVISION  
(SPECIAL ORIGINAL JURISDICTION)

**WRIT PETITION NO. 4043 OF 2020**

IN THE MATTER OF:

An application under Article 102 of the  
Constitution of the People's Republic of  
Bangladesh.

-AND -

IN THE MATTER OF:

Gazi Ayub Ali and others

... Petitioners

-VS-

Bangladesh, represented by the Secretary,  
Ministry of Power, Energy and Mineral  
Resources, Power Division, Bangladesh  
Secretariat, Dhaka-1000 and others

... Respondents

Mr. Md. Salauddin Dolon, Senior Advocate

... For the Petitioners

Mr. Mohammad Imtiaz Farooq with

Mr. Md. Faisal Islam, Advocates

... For the Respondent No. 3

**Present:**

**Mr. Justice Zafar Ahmed**

**And**

**Mr. Justice Md. Bashir Ullah**

**Heard on 30.03.2023 and 05.04.2023**

**Judgment on: 07.06.2023**

**Md. Bashir Ullah, J.**

On an application under Article 102 of the Constitution of the  
People's Republic of Bangladesh, Rule Nisi was issued calling upon the  
respondents to show cause as to why they should not be directed to grant  
the scale of Taka 425-1035 (Grade XII) under the National Pay Scale of  
1977 (corresponding to the Scale of Taka 11300-27300 under the National

Pay Scale of 2015) as selection grade to the petitioners with effect from the respective date of their entitlement and/or pass such other or further order or orders as to this Court may seem fit and proper.

Facts, relevant for the disposal of the Rule, in brief, are that the petitioners joined in different Power Stations under the Bangladesh Power Development Board (BPDB) after being selected on various dates during 1983-1985 as Junior Accounts Assistant. Since joining, they have been working and discharging their duties with the highest level of satisfaction of the authorities. Accordingly, in due process they were granted three time scales in Grade XV-XIII after completion of 15(fifteen) years of service. Afterwards, they were promoted to the post of Senior Accounts Assistant. Subsequently, they were granted two time scales in Grade XII and XI for successful completion of the required service of 12(twelve) years in the post of Senior Accounts Assistant and ultimately, they were promoted to the post of Assistant Accountant with the scale of Grade X on different dates. They have been drawing their salaries in Grade X though their colleagues who were granted selection grades in 2006 have been getting their wages in Grade IX. Unfortunately, the respondents are not granting selection grades to the petitioners.

It is stated that the Government promulgated the Services (Reorganization & Conditions) Act, 1975 [Act No. XXXII of 1975] for reorganization of the services of the Republic and other public bodies and nationalized enterprises prescribing unified Grades and Scales of pay and

other terms and conditions of service for such persons employed in such services. Under the provisions of the said Act, the respondents are legally bound to ensure uniform grades and scales of pay to the petitioners and other similarly situated Assistant Accountants and as such, their inaction and denial are violative of the provisions of the mandatory provisions of law.

It is further stated that the respondents have no legal authority to deny the selection grade scale of the petitioners and others when the same scale had been allowed to the others who are holding same and similar post of the BPDB. Rights or benefits accrued under the National Pay Scale of 1985, 1991, 1997, 2005 and 2009 cannot be denied to the petitioners when the same benefits have been given earlier to the same and similar post holders of the BPDB.

It is further stated that after having waited long for 10 years, the petitioners ultimately were constrained to serve a Notice Demanding Justice upon the respondents on 07.07.2020 through their learned Advocate which the respondents duly received but no action has been taken.

Being aggrieved, the petitioners filed this writ petition and obtained Rule.

Respondent No. 3 contested the Rule by filing an affidavit-in-opposition.

The case of the respondent No. 3 is that the petitioners have accepted their selection grade and upgradation without raising any objection. They never claimed three time scales and selection grades during the subsistence of their service and hence, their claim is barred by the principles of estoppel and waiver. The grounds for granting the benefits of selection grade depend on their respective satisfactory service records which shall be determined by the respective authority. So, it can not be said that petitioners are entitled to the benefits just because other employees in the same post have been granted such benefits.

Mr. Md. Salauddin Dolon, learned Senior Advocate appearing for the petitioners submits that the petitioners are Assistant Accountants in the BPDB. Earlier, 4 Assistant Accountants and 3 Senior Accounts Assistants of the BPDB filed Writ Petition (WP) No. 2344 of 2009 seeking similar direction and upon hearing this Division made the Rule absolute on 28.10.2009. Therefore, the petitioners are entitled to get the same benefits and should be treated at par with the other employees of various Government departments.

He further submits that the respondents have been adopting the policy of 'Pick and Choose' while treating similarly situated employees of the same department on their whims and sweet will and having resolved the abovementioned issues of pay discrimination in the BPDB itself, they can bring the parity in the pay of the petitioners in a similar manner by granting them the selection grade scale.

Per contra, Mr. Mohammad Imtiaz Farooq, learned Advocate appearing on behalf of the respondent No. 3, submits that it cannot be justified that all the employees will benefit from selection grade simultaneously without evaluating their service records. The authority to grant the benefits of the selection grade scale is a sole discretionary matter of the BPDB, not a judicial matter. The employees who have satisfied the criterion to be eligible to get the benefits of selection grade shall become entitled to this benefit. The respondent has absolute authority to determine and consider the records of service and determine who would actually be entitled to get the benefits of the selection grade scale. This evaluating and granting process is based on evaluation of individual's service records which is not supposed to be regarded as pick and choose.

Heard the learned Advocate for the petitioners as well as learned Advocate for the respondents, perused the writ petition, affidavit-in-opposition, annexures and other materials on record.

It appears from the record that the petitioner No. 1 had joined on 22.10.1984; Petitioner Nos. 2, 3, 4, 6, 8, 11, 13, 18, 21, 23, 24, 30, 32, 34, 39, 41, 52, 58, 60, 65 and 66 had joined on 21.04.1985; Petitioner Nos. 5, 12, 16, 17, 19, 26, 28, 35, 36, 45, 48, 49, 50, 53 and 54 had joined on 26.02.1985; Petitioner No. 7 had joined on 23.05.1983; Petitioner No.9 and 15 had joined on 28.02.1985; Petitioner No. 10 and 33 had joined on 02.04.1985; Petitioner No. 14 had joined on 22.04.1985; Petitioner Nos. 20, 43 and 61 had joined on 06.04.1985; Petitioner Nos. 22,25, 44, 46, 57

and 63 had joined on 27.05.1985; Petitioner No. 27 had joined on 03.07.1985; Petitioner No.29 had joined on 09.06.1985; Petitioner No. 31 had joined on 08.04.1985; Petitioner No. 37 had joined on 04.04.1985; Petitioner No.38 had joined on 27.06.1985; Petitioner No. 40 and 55 had joined on 01.06.1985; Petitioner No. 42 had joined on 30.05.1985; Petitioner No.47 and 56 had joined on 07.04.1985; Petitioner No. 51 had joined on 25.02.1985; Petitioner No. 59 had joined on 29.05.1985; Petitioner No.62 had joined on 18.10.1984 and Petitioner No.64 had joined on 14.10.1984 as Junior Accounts Assistant. Thereafter, they were granted three time scales in Grade XV-XIII for completion of 15(fifteen) years' service and after that they were promoted to the post of Senior Accounts Assistant. Subsequently, they were granted two time scales in Grade XII and XI for successful completion of the required service of 12(twelve) years in the post of Senior Accounts Assistant and ultimately, they were promoted to the post of Assistant Accountant with the scale of Grade X on different dates. They have been drawing their salaries in Grade X.

Earlier, 1 Accountant Assistant, 4 Accountants and 3 Senior Accounts Assistants of the BPDB filed WP No. 2344 of 2009 seeking similar direction upon the respondents to give them a pay scale of Tk. 400-825/- with effect from 1.7.1977. Upon hearing, this Court made the Rule absolute on 28.10.2009 and directed the respondents to give the Senior Accounts Assistant of the BPDB the pay scale of Tk. 400-825/-

and consequently, classified them as grade 13 employees with effect from 1.7.1977.

The BPDB issued the following office order complying with the judgment and order passed by this Court in WP No. 2344 of 2009 :-

“সূত্র নং-৮৯-বিউবো(কর্ম)/৫/বিবিধ-১৮/২০০৯

তারিখ ১৩/০৫/২০১০ খ্রিঃ  
৩০-০১-১৪১৭ বাং

“দপ্তরাদেশ”

মহামান্য সুপ্রীম কোর্টের হাইকোর্ট বিভাগে দায়েরকৃত রীট পিটিশন নং-২৩৪৪/২০০৯ এর  
রায়ের প্রেক্ষিতে বিদ্যুৎ উন্নয়ন বোর্ডের উচ্চমান হিসাব সহকারীগণকে ০১/০৭/১৯৭৭ ইং তারিখ হইতে  
টাঃ ৪০০-৮২৫/- (জাতীয় বেতনস্কেল’৭৭) বেতন স্কেল মঞ্জুর করা হইল।

২১/০৪/২০১০ ইং তারিখের ১৩৮০ তম  
সাধারণ বোর্ড সভার সিদ্ধান্তক্রমে

বোর্ডের আদেশক্রমে,  
স্বাঃ/-

(মোঃ আসাদুজ্জামান আকন)  
আই ডি নং-০২-০০৮৭  
উপপরিচালক-৩ (কর্ম)”

It appears from the judgment dated 28.10.2009 passed in WP No. 2344 of 2009 (Annexure- A-6) that the Senior Accounts Assistants of Water Development Board got the same pay with the Upper Division Assistants. But in the National Pay Scale of 1977 the Senior Accounts Assistants of the Water Development Board were given a lower pay scale of Tk. 370-745/- while the Upper Division Assistants were given the higher pay scale of Tk. 400-825/-. Being aggrieved, the Senior Accounts Assistants filed WP No. 4141 of 1997 praying for giving them the pay scale of Tk. 400-825/- which was given to the Upper Division Assistants.

Upon hearing, this Court passed judgment in favour of the petitioners. In compliance with the judgment and order the Senior Accounts Assistants of the Bangladesh Water Development Board were given pay scale of Tk. 400-825/- with effect from 01.07.1977.

It appears from Annexures F1, F2, F3 to the writ petition that the Ministry of Power, Energy and Mineral Resources recommended to the Ministry of Finance to remove discrimination and disparity among its employees on 14.10.2014, 16.04.2015 and 12.10.2017 respectively. However, the Respondent No. 2, Ministry of Finance did not take any steps.

It is divulged from Annexure-F that one Shishir Kanti Dey, Assistant Accountant of the BPDB has been drawing his monthly salary on the scale of 23000-55470/- in Grade VIII after obtaining a selection grade of 425-1035/- and on the other hand the petitioners have been drawing their salaries in Grade X.

The facts of the instant case on material points are no different from those of WP Nos. 2344 of 2009 and 4141 of 1997 and the learned Advocate of the respondent could not point out any distinguishing factor. Hence, we find no reason to take a different view.

In view of the above facts, circumstances and earlier decision passed by this Court, we are of the view that the petitioners are entitled to get the benefit of selection grade with retrospective effect from the respective date of their entitlement.



Accordingly, the Rule is disposed of.

The respondents are directed to give the benefit of selection grade in Grade XII on the scale of Taka 425-1035 under the National Pay Scale of 1977 (corresponding to a scale of Taka 11300-27300 under the National Pay Scale of 2015) to the petitioners as per their entitlement by treating them at par with the other employees of the same department within 03(three) months from the date of receipt of a copy of this judgment and order.

There is no order as to costs.

Communicate the judgment and order forthwith.

**Zafar Ahmed, J.**

I agree.

Md. Ariful Islam Khan  
Bench Officer